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Submitter Information

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General Comment

Hi there. My name is Neil Blevins, and I am an Art Director and concept artist. I would like to urge the government to declare that training of Generative AI on copyright material a violation of current copyright law.

Many tech companies are arguing that training AIs on copyright material should fall under "fair use", however, one of the tenants of fair use is that the result of the usage should not compete with the person who's work has been used. This makes a lot of sense, if I create a piece of art, and someone wants to write a critique of my work including the art for people to see, that critique does not interfere with me continuing to sell said work.

However, the vast majority of Generative AI software is specifically being marketed as a replacement for the original artists whose work has been used in the training data without their permission and without compensation. The effects of this have already been devastating. About 50% of my fellow artists are current unemployed or under employed due to these developments. I have worked 25 years in the entertainment field including working on 9 Pixar films that have won oscars and delighted billions of children, and I have been unable to secure new fulltime work in well over a year due in part to companies downsizing their art departments by using generative AI to create artwork. Thousands of people are jobless due to this unfair competition, and the number will continue to grow, as well as spread to other fields, increasing unemployment rates.

The technology could potentially be used to help society, and I am all for legislation that can help guide it in that positive direction. But the way it is currently being utilized is putting a lot of people out of work, and not adding new jobs for them to do. The first step to fixing the AI debacle is upholding current copyright law, and create clean datasets that are based on copyright free work, and work where the contributors give their permission and are appropriately compensated. Please help us create AI that will benefit humanity, not impede its economic prosperity.